

Complaint Report (CCRB)

CCRB Case No :	201609754	C/V Report Date :	Sat, 11/19/2016
Complaint Type :	CCRB	Investigator :	Griffin Sherbert
Complaint Made At :	IAB	Ref. No	16-41271
Received Date (CCRB) :	Fri, 11/25/2016 11:04 AM	Mode :	Phone
Incident Date(s) :	Saturday, 11/19/2016 6:50 PM		
Place of Occurrence:	[REDACTED]	Precinct:	42
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	Other		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Mark Mobarek	Subject Officer	956938	White	042	Stop - (A) Complainant Unavailable
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Stop - (A) Complainant Unavailable

Initial Complaint Narrative

11/22/2016**THE ORIGINAL LOG # 16-40917 WAS ASSESSED AS AN (OG TO CHIEF OF DEPARTMENT). THIS IS A SPIN OFF CCRB "FADO-AUTHORITY ALLEGATIONS.** (KA)CCRB WILL INVESTIGATE THE FADO ALLEGATIONS AGAINST UNIFORMED MEMBERS OF THE SERVICE CONTAINED IN THIS LOG. THE NYPD WILL INVESTIGATE ALL OTHER ALLEGATIONS, INCLUDING FADO ALLEGATIONS AGAINST CIVILIAN MEMBERS OF THE SERVICE. THE INFORMATION PERTAINING TO THESE ALLEGATIONS AND THE SUBSEQUENT INVESTIGATION IS CONFIDENTIAL.(MPW) On Saturday, November 19, 2016; ext. 2241, I spoke with Complainant § 87(2)(b) DOB-§ 87(2)(b) who called the Command Center to report the following: § 87(2)(b) and a friend was walking on Boston Road and Crotona Avenue when they were stopped by 2 police officers. § 87(2)(b) presented his ID to the officers. § 87(2)(b) described PO1 as wearing badge number "5668," and being named "MacKren." § 87(2)(b) described PO2 as wearing badge number "1471," and being named "Vargas." One of the officers asked § 87(2)(b) friend, "what's in your hand," and asked § 87(2)(b) "what's in your bag?" PO1 asked § 87(2)(b) "Do you speak English?" and, "Why are you nervous?" § 87(2)(b) responded to PO1, saying "Can you speak English?" and, "I am not nervous. Why are you stopping me?" Neither PO responded to § 87(2)(b) and handed back his ID card. PO1 and PO2 left the scene.1945hrs - DAS lite check with negative results. (MPW)1949hrs - ICIS check with negative results on prior log. Personnel check.Shield # 05668 is assigned to PO Mobarek, tax# 956938 of the 42 Pct.Shield # 01471 comes back to following: PO Glaze, tax# 911953 of SSA.PO Herring, tax# 926949 of the 23 Pct.Conducted name check of Vargas at the 42 Pct.PO Vargas, tax# 957245, shield # 7471. The shield number of 7471 comes close to 1471.PO Vargas, tax# 956315, shield # 1515. (MPW)2025hrs - CC audio attached. (MPW)2030hrs - ARCS conducted. Unfinalized roll call shows PO Vargas, tax# 957245 and PO Mobarek, tax# 956938 assigned to sector 42C. See attached. (MPW)

Witness
